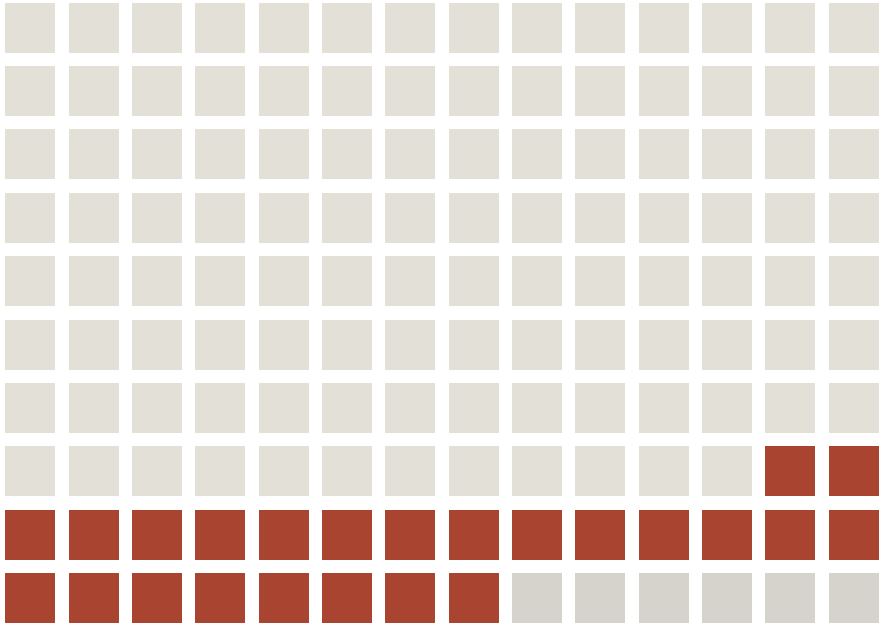
ATHENA ELECTION OBSERVATORY

KOGI 2023

FORENSIC POST-ELECTION AUDIT

Governorship election · 11 November 2023
Athena Post-Election Audit Framework (APAF) — totals-based variant



3,508 polling units · 239 wards · 21 LGAs · 1,932,692 registered voters

BVAS → EC8A → EC8B → EC8C → EC8D → EC8E

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THE ANSWER

What did we find?

82.0%

of assessable polling units complied with BVAS accreditation (within the ±5 band). 2,757 of 3,362.

APEA ELECTION INTEGRITY ASSESSMENT

Significant Integrity Deficits

Provisional pending APAF threshold sign-off. Process integrity; outcome materiality is reported separately.

3,508	3,362	2,757	605	146
Polling units audited	**Assessable**	**Compliant**	**Non-compliant**	**Excluded**
100% coverage	95.8% of all PUs	82.0% of assessable	18.0% of assessable	4.2% of all PUs

APEA is an electoral integrity audit, not a legal determination. It does not determine the legal validity of an election, return or certificate of return.

WHAT DOES THAT MEAN?

Most polling units passed. The failures remained — and were not evenly spread.

2,757

Compliant polling units

605

Non-compliant (18.0% of assessable)

146

Excluded — no usable result



Compliant Non-compliant Excluded

Each cell is one of 3,508 polling units. Compliance is high overall, but the non-compliant units are concentrated — Okene alone holds 46% of them. The next slide shows where.

Did the identified problems approach the declared outcome?

+187,175

Declared margin · APC 446,237 — SDP 259,062

150,968

Over-voting magnitude — votes recorded over BVAS accreditation in the non-compliant units.

81% of the margin

"A compliant-only recount changes the plurality — SDP leads — and neither candidate clears the 25% spread. The outcome is materially in question."

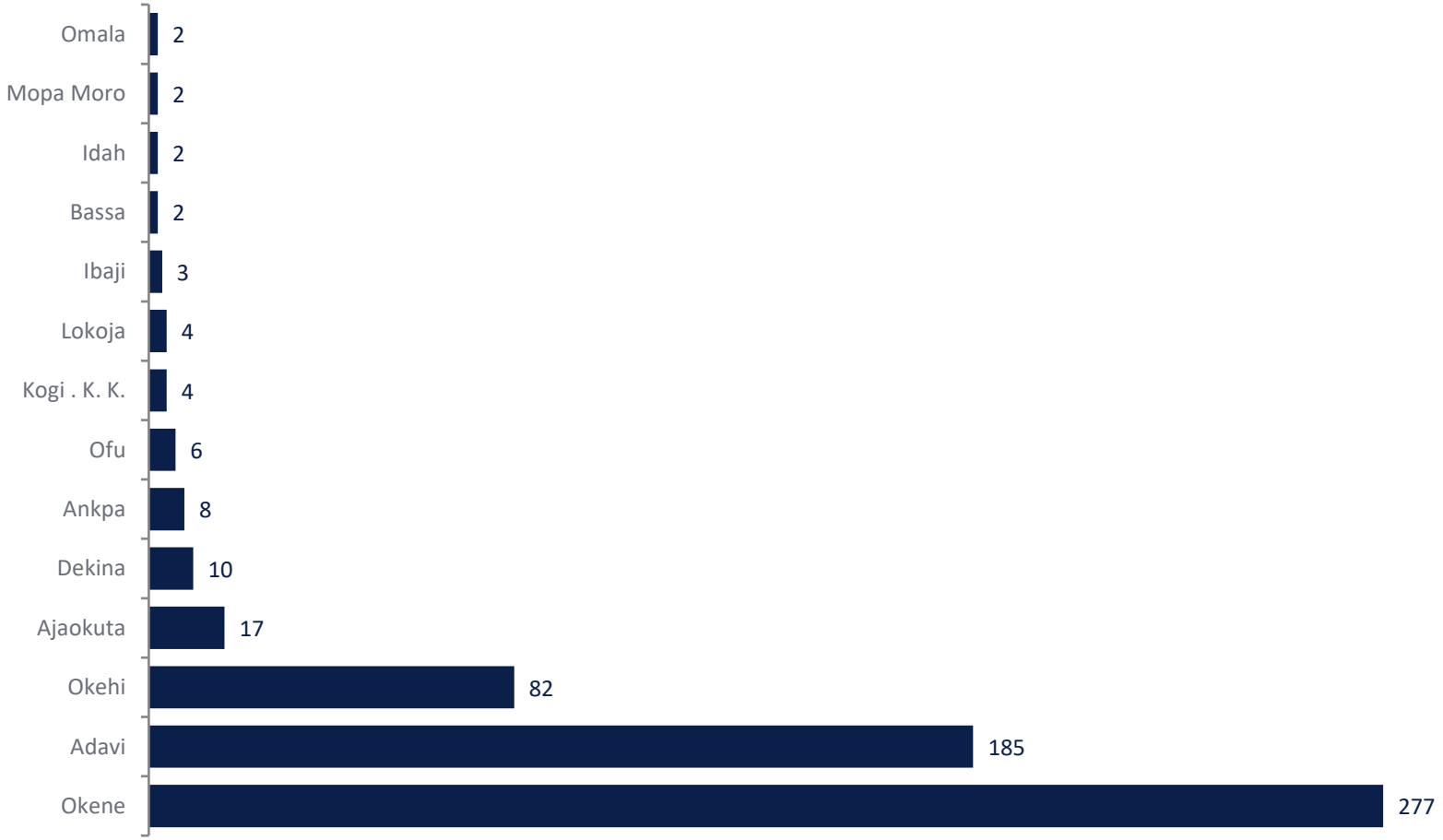
STRESS TEST — COMPLIANT PUs ONLY

SDP 245,735
APC 169,806
PDP 42,006
LP 525

On the compliant polling units SDP leads — the declared winner is displaced. SDP clears 25% in 13 LGAs; the spread requires 14.

Integrity and outcome are reported separately; the legal effect of any non-compliance is for the Tribunal or Court.

Non-compliance was concentrated — Okene led.



605

non-compliant polling units across 21 LGAs

Okene holds 277 of them (46%). Scale and concentration travel together.

HOW DID THE ELECTION PERFORM?

Four dimensions, each with one principal finding — and no invented score.

01

Technology & Evidence

97.2%

EC8A results uploaded to IReV

- 98.7% record legibility
- BVAS the fixed accreditation anchor
- EC8A carries the PU-level result

02

Polling-Unit Compliance

82.0%

2,757 / 3,362 compliant

- 605 non-compliant (±5 band)
- 558 transferred + 47 inflation
- 46% in Okene

03

Collation Integrity

80 / 239

wards flagged EC8B → EC8C

- 78 discrepancy + 2 missing form
- LGA & state totals reconcile
- over-voting favoured APC

04

Outcome Materiality

81%

defects as share of the margin

- Compliant recount flips the lead
- compliant lead: SDP
- integrity & outcome kept separate

We did not sample the election. We reconstructed it.

3,508

polling units, each carried through the full form chain from BVAS accreditation to the state result.

239	wards (EC8C)
21	LGAs (EC8D)
1	state result (EC8E)
4	parties traced

FOUR QUESTIONS, ANSWERED FROM INEC'S OWN RECORDS

Discrepancies in the chain, totals that reconcile — and a margin the discrepancies do not approach.

21 / 21

Do the declared totals reconcile through the chain?

All 21 LGA total-vote figures reconcile to the declaration (EC8C → EC8D → EC8E, within ±5). Party-level reconciliation is not assessed in the totals-based variant.

824 → 642

Was there statutory over-voting?

824 of 3,508 PUs exceeded BVAS accreditation at EC8A; 642 remained over-voted at EC8B (s.51(2), zero tolerance).

80 / 239

Did the collation chain preserve polling-unit results?

80 wards (33.5%) fail EC8B → EC8C total reconciliation (78 discrepancy + 2 missing form); EC8C → EC8D → EC8E totals reconcile.

81%

Do the identified discrepancies approach the declared margin?

The over-voting (150,968) is 81% of the 187,175 margin, and a compliant-only recount changes the plurality to SDP — the outcome is materially in question.

The net movement was small. The movement underneath was not.

Party votes recorded in the non-compliant polling units



APC was arithmetically favoured.

Of the 288,760 party votes recorded in the non-compliant units, 273,737 (95%) were APC's.

Removing these units is what flips the compliant-PU lead to SDP. An arithmetic observation of where the over-voting sat — not a finding of intent.

Where the chain is weakest: the EC8B → EC8C ward step.

80 / 239

wards flagged — 78 with a genuine discrepancy (summed PU total differs from the certified ward total by > ±5) and 2 with a missing ward-collation form.

The chain still closes at the top.

EC8C → EC8D reconciles at the LGA totals, and EC8D → EC8E reconciles to the state result within ±5. A declaration can balance at the top while the discrepancies are already inside it — at the ward step.

See the evidence yourself.

Adavi · NAGAZI FARM CENTRE · ZARIAGI (KABBA JUNCTION) LGEA SCHOOL I (22-01-10-025)

BVAS accreditation	**188**
EC8A total votes cast	**1,467**
EC8B total votes cast	**1,452**
Over-voting (TVC − BVAS)	**+1,264**
Classification	**Transferred over-voting**
Carried into EC8B	**Yes — not cancelled**

1,452 votes were cast against 188 accredited voters and carried through to the ward collation without cancellation. Reported as recorded by INEC; APEA records the discrepancy, not intent.

RECOMMENDATIONS

Make every change between forms explainable, documented and auditable.

01	**Activate BVAS electronic collation**	Deploy e-collation so results are recorded electronically before the manual EC8A, and the accreditation ceiling travels with the result.
02	**Upload the EC8B ward form to IReV**	Publishing ward collation makes the weakest step in the chain visible and reduces the room for undocumented change.
03	**Statutory declaration of correctness on every form**	Bind the presiding and collation officers to the figures entered, with liability for falsification.
04	**Visibility and accountability of officers**	Commend officers who recorded only BVAS-compliant results; prosecute those who recorded votes exceeding accreditation.
05	**Independent audit and ballot scanning**	Appoint election auditors and deploy ballot-paper scanners within the s.65 review window; implement the Justice Uwais reforms.

EVERY ELECTION LEAVES AN EVIDENCE TRAIL.

APEA follows it — from accreditation to declaration.

Kogi 2023 · Athena Post-Election Audit · Totals-based variant

APEA findings are analytical and evidential. They do not determine the legal validity of an election, return or certificate of return. Legal consequences are matters for the appropriate Tribunal or Court.

LAYER 3

The Audit.

Definitions, methodology, the pillar detail and the full per-LGA and per-ward evidence — the basis for every figure in this report.

APPENDIX A

Standard of proof — what this audit is, and is not.

- APEA is an independent forensic audit of INEC's own certified records. It reconstructs the evidence chain; it does not re-run the election.
- Its findings are analytical and evidential. They do not determine the legal validity of an election, return or certificate of return — those are for the appropriate Tribunal or Court.
- Figures are reported as INEC recorded them. Where a change between forms is identified, APEA records what changed, where and by how much — not intent.

Integrity assessment and outcome materiality are reported separately: a large defect does not by itself establish that the outcome was threatened, and a large margin does not make a poorly administered election sound.

APPENDIX B

Key terms.

Term	Definition
BVAS accreditation	Accredited voters recorded by BVAS — the legal ceiling on votes cast (Electoral Act 2022, s.51(2)).
Compliant PU	Assessable PU whose EC8B total votes cast is within ±5 of BVAS accreditation, including under-voting.
Non-compliant PU	Assessable PU over-voted beyond ±5: transferred over-voting or unexplained inflation.
Excluded / indeterminate	PU with no usable EC8B result (total votes cast = 0): cancelled, no record, disrupted.
Transferred over-voting	Over-voted at EC8A and still over-voted at EC8B — carried into the result.
Unexplained inflation	Clean at EC8A but pushed over BVAS at EC8B.
Unexplained reduction	EC8B total cut below the EC8A total beyond ±5 — reported separately.
IReV	INEC Result Viewing Portal — carries the EC8A polling-unit result image.

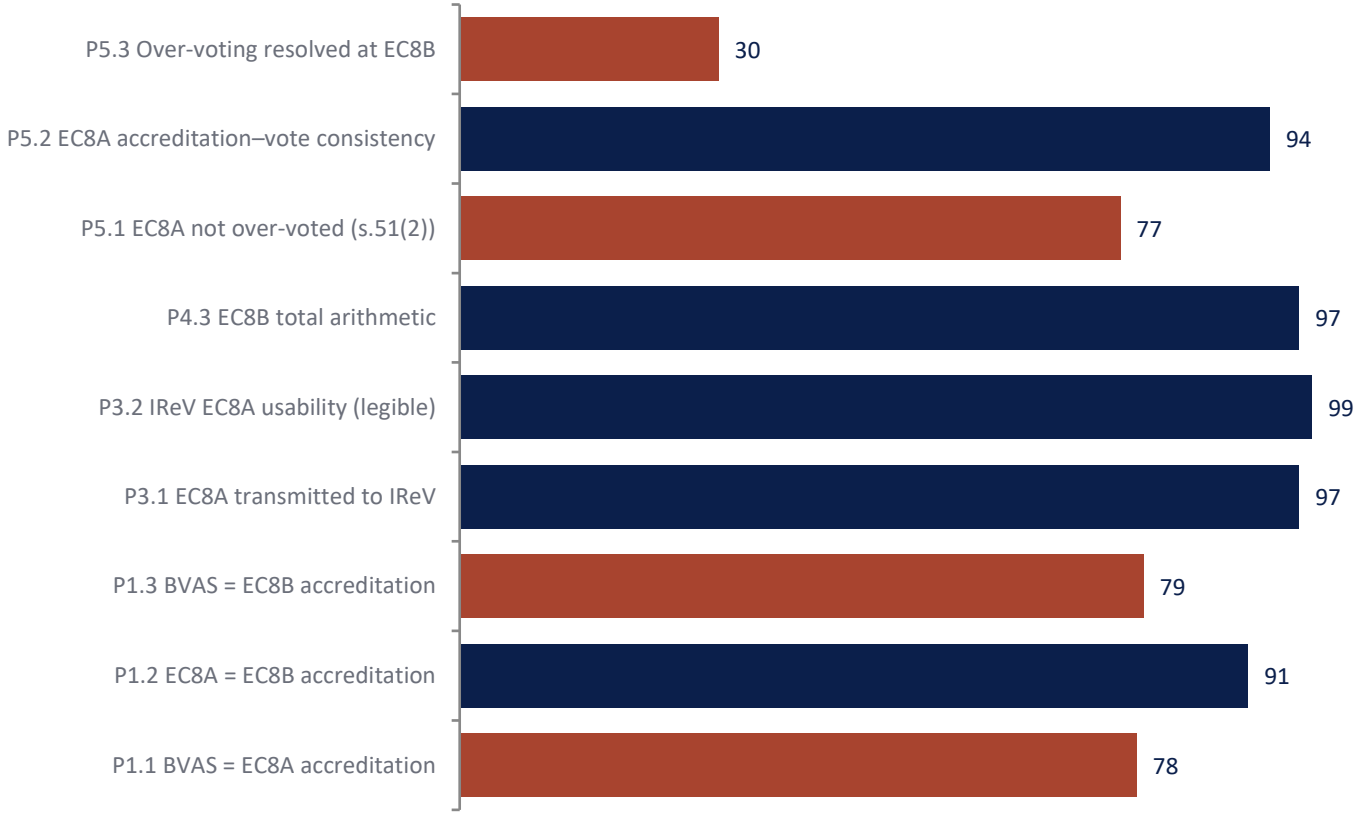
APPENDIX C

Methodology & statistical note.

	Note
Variant	Totals-based. Kogi captured PU-level votes for APC, LP, PDP, SDP plus the totals; compliance, over-voting, under-voting, exclusion, inflation and materiality run off the totals and are complete.
Tolerance	±5 is the clerical-error allowance, applied to the compliance band and to reconciliation; the statutory over-voting verdict (s.51(2)) is zero-tolerance and reported separately.
Direction	The party composition of votes in the non-compliant units is reported as an arithmetic observation; per-party reconciliation requiring every party is marked Not assessed.
Standings	Party totals are recomputed on the compliant polling units only, with the constitutional 25% spread assessed per LGA (Appendix F).
Reproducibility	Every PU-level indicator carries a classification column on the analysed worksheet; counts, evidence tabs and standings are computed from those columns.

APPENDIX D

APAF criteria — totals-based application.



NOT ASSESSABLE (totals-based variant)

- P2.1/P2.2 Ballot accounting (no ballot columns)
- P4.1/P4.2 Party-vote = valid (top parties only)
- P4.4/P4.6 Party-vote reconciliation across levels
- P5.4 Party-vote alteration

Criteria computed from the APAF spec. Party-vote and ballot-accounting criteria are Not Assessable where the data was not captured, and are excluded from the denominator — never scored zero.

Direction of over-voting — the party arithmetically favoured.

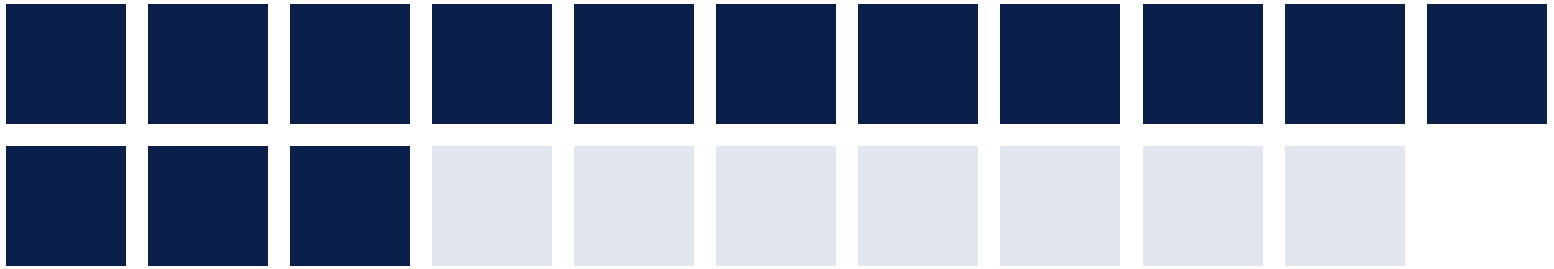
Party	Votes in non-compliant PUs	Share
APC	273,737	94.8%
SDP	10,911	3.8%
PDP	3,745	1.3%
LP	367	0.1%

APC holds 273,737 of the 288,760 party votes in the non-compliant units.

A directional observation of where the over-voting sat, reported alongside — not merged into — the compliance verdict, with no finding of intent.

APPENDIX F

Constitutional spread on the compliant polling units.



14 / 21

LGAs where the declared winner (APC) cleared 25% of the compliant-PU vote; two-thirds (14) are required.

The runner-up (SDP) polls the highest votes on the compliant units but clears the spread in only 13 LGAs — one short of 14. On the compliant evidence base alone, no candidate satisfies both limbs of the test.

APPENDIX G

Coverage & limits.

WHAT IT CAN SUPPORT

- Compliance, over-voting, under-voting and exclusion from the totals
- The EC8B→EC8C→EC8D→EC8E collation reconciliation
- Outcome materiality and compliant-PU standings for the captured parties

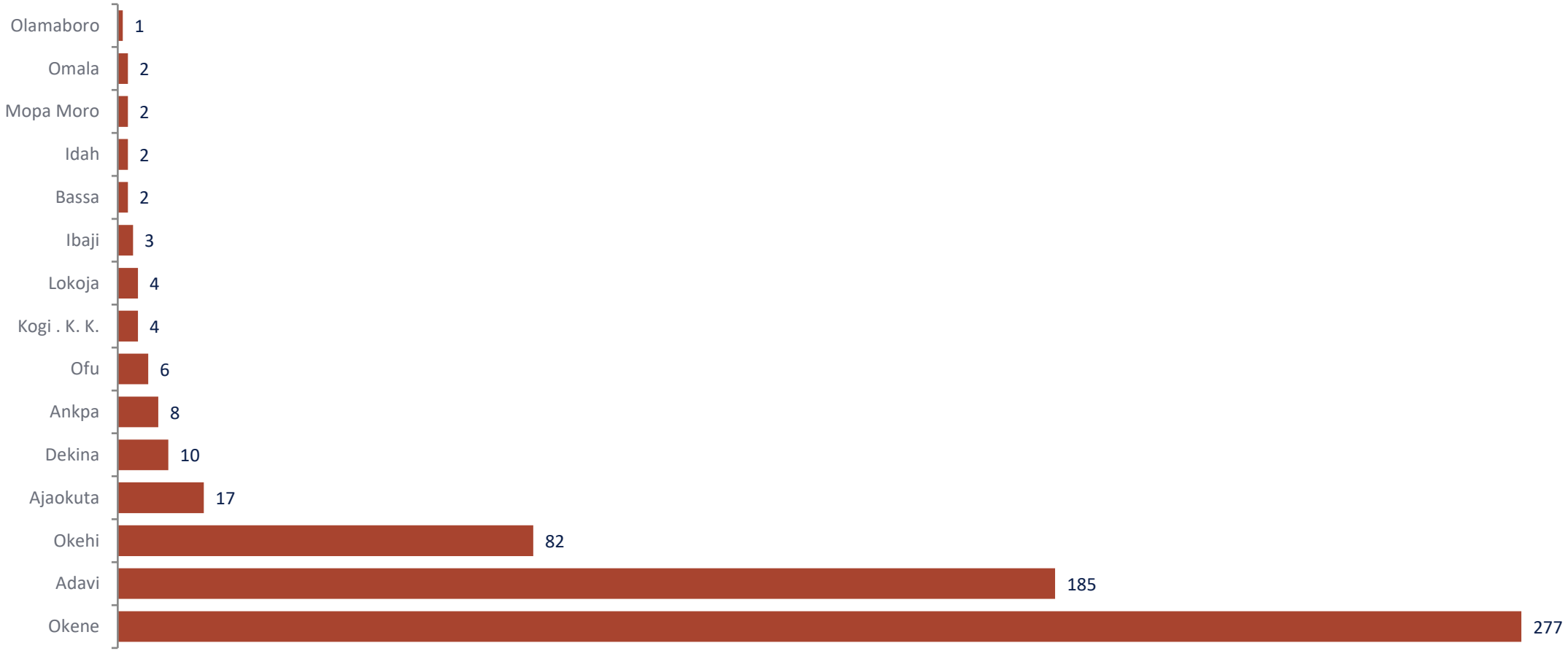
WHAT IT CANNOT

- Per-party reconciliation across every party (top parties captured only)
- A legal determination of validity or return
- Intent behind any recorded change

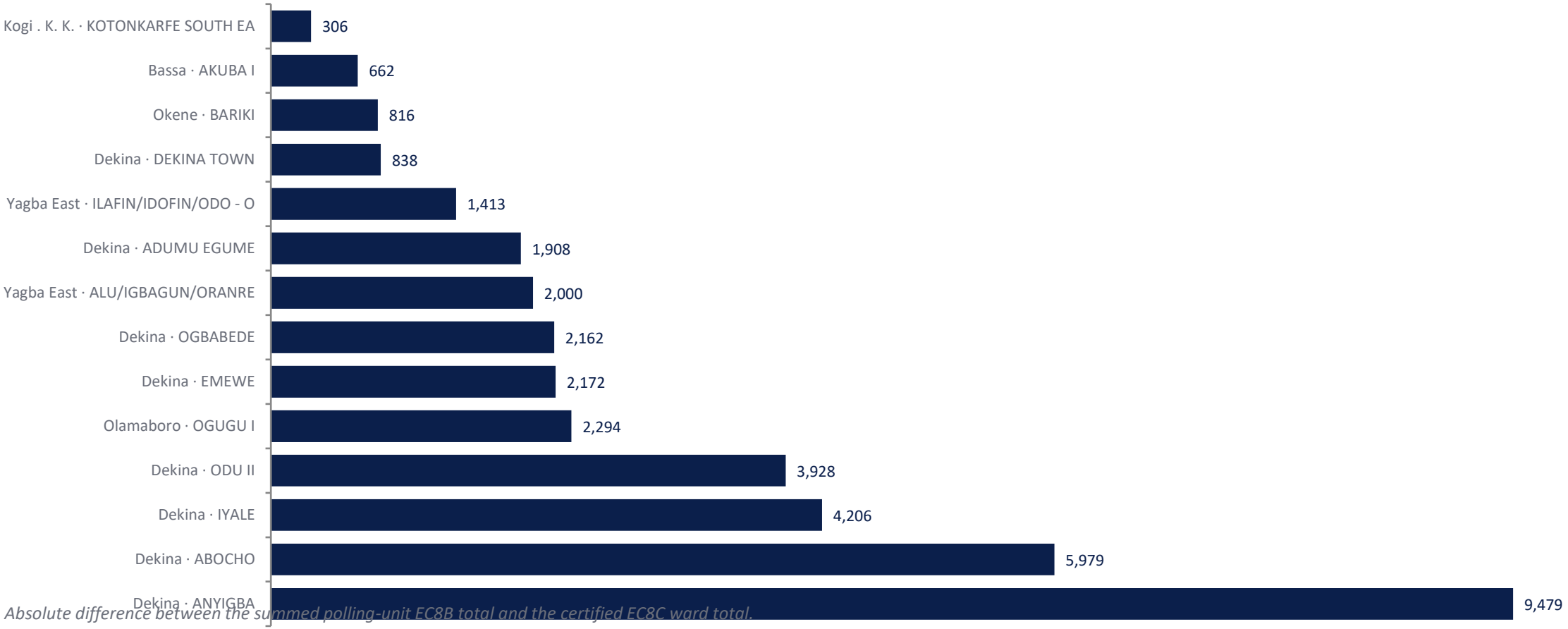
LIMITS ON THE RECORD

- 146 excluded PUs with no usable EC8B result
- 2 wards with no EC8C form (flagged, not a discrepancy)
- Source-form transcription errors logged in Appendix J

Non-compliant polling units by LGA.



Wards not reconciling EC8B → EC8C — top by magnitude (80 flagged).



Absolute difference between the summed polling-unit EC8B total and the certified EC8C ward total.

Every record we expected — and what we obtained.

Record	Expected	Obtained	Note
BVAS accreditation	3,508	3,508	Complete — the accreditation baseline
EC8A polling-unit result	3,508	3,508	97.2% uploaded to IReV
EC8B polling-unit result	3,508	3,362	146 with no usable result (excluded)
EC8C ward collation	239	239	2 ward forms absent
EC8D LGA collation	21	21	All LGA totals reconcile
EC8E state declaration	1	1	Reconciles to EC8D within ±5
Party votes	APC · LP · PDP · SDP	captured	Top parties only; minor parties N/A

APPENDIX J

Corrections & data-quality log.

Form	Item	Treatment
EC8D	Per-LGA party totals	No transcription anomalies found; EC8D → EC8E reconciles within ±5.
EC8C	2 ward forms absent	Reported as flagged, not as a vote discrepancy.
EC8B	146 excluded PUs	No usable result (total votes cast = 0); reasons held in the evidence register.